

Court No. - 21

Case :- WRIT - C No. - 4355 of 2021

Petitioner :- Sukhpal Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Harish Chandra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Sanjay Kumar Pachori,J.

Heard learned counsel for the petitioner and learned Standing Counsel. Shri Pawan Kumar Misra holding brief of Shri Pranjal Mehrotra appears for the contesting respondents.

The petitioner is before this Court assailing the demand notices dated 24.7.2020 and 7.9.2020 issued by respondent no.3 i.e. Executive Engineer, Prescribed Authority Electricity Distribution Division-II, Pashchimanchal Electricity Distribution Corporation Ltd. Gajraula, Distt. Amroha and for a direction to the respondents not to insist to pay the electricity dues pursuant to demand notice dated 7.9.2020.

It appears that the petitioner had earlier approached this Court by way of preferring Writ-C No.4750 of 2020 (Sukhpal Singh v. State of U.P. & Ors.), which was disposed of on 27.2.2020 with following observations:-

"Heard learned counsel for the petitioner, learned Standing Counsel appearing for the State-respondents and Sri Pranjal Mehrotra, learned counsel appearing for the respondents-Electricity Department.

By means of this writ petition the petitioner submits that he has an electricity connection and a bill of Rs. 7700/- was presented to the petitioner. The petitioner did not deposit the said amount and on 30.8.2011 the petitioner's electricity connection was disconnected and cable etc. was removed as per dis-connection notice dated 30.8.2011.

It appears that the petitioner was allowed to enter into 'One Time Settlement Scheme' and he deposited the fee of Rs.1000/- and 'OTS' was arrived at for a sum of Rs.5002/- on 15.9.2011. Thereafter, disconnection notice has again been issued for a sum of Rs.69271/-.

According to the learned counsel for the petitioner, once disconnection notice has been issued on 30.8.2011 and the connection was disconnected and thereafter 'OTS' was accepted then disconnection notice could not have been issued.

Sri Pranjal Mehrotra, learned counsel appearing for the Electricity Department, on the other hand, submits that earlier the connection was temporarily disconnected and upon the petitioner depositing the bill under the 'OTS' his electricity was resumed and the petitioner never applied for permanent disconnection and as such, the bill has been issued.

With the consent of the learned counsel for the parties, this writ petition is disposed of with the direction that the petitioner may make a representation before the Executive Engineer, who will consider the same and pass appropriate orders, in accordance with law, within a period of one month from the date a certified copy of this order along with a

fresh representation is presented before the authority concerned.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to demand notice dated 8.12.2019."

Learned counsel for the petitioner vehemently contended that even though while disposing the aforementioned writ petition, adequate time was accorded to the respondent to finalise the proceeding in question and they were restrained to take coercive action against the petitioner pursuant to demand notice dated 8.12.2019. He submits that without finalising the said proceeding, the present impugned notice has been given to the petitioner, which is per se bad and unsustainable under the facts and circumstances of the case.

In spite of sufficient time, no instruction is being provided by the respondent. Again Sri Pawan Kumar Mishra, learned counsel who entered appearance on behalf of Sri Pranjal Mehrotra, learned counsel for the contesting-respondent submits that some reasonable time may be accorded so that appropriate instructions may be obtained.

Put up this matter again as fresh on 08.03.2021.

Till the next date of listing, no coercive action shall be taken against the petitioner pursuant to impugned demand notices dated 24.7.2020 and 7.9.2020.

Order Date :- 18.2.2021

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Court No. - 39

Case :- WRIT - C No. - 4355 of 2021

Petitioner :- Sukhpal Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Harish Chandra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

The dispute in the present case is with regard to the demand notice dated 24.07.2020/07.09.2020 issued by the respondent no.3 i.e. the Executive Engineer/Prescribed Authority, Electricity Distribution Division-II, Pashchimanchal Electricity Distribution Corporation Ltd. Garaula, Amroha.

Contention of the learned counsel for the petitioner is that the petitioner had made entire payment under One Time Settlement scheme (OTS) arrived on 15.09.2011. The disconnection notice issued by the respondent after settlement of dues under the OTS scheme, therefore, is illegal.

It is then contended that in compliance of order of this Court dated 27.02.2020 in Writ C No.4750 of 2020, filed by the petitioner, the petitioner had approached the respondent no.3 by submitting a representation through registered post on 03.12.2020. There is no decision to the same, but the respondent no.4 is pressing the demand notice dated 24.07.2020/07.09.2020.

The recovery citation appears to have been issued pursuant to the demand notice.

Be that as it may, the dispute being raised herein is factual in nature. It is not possible for the Court to ascertain the factum of use of electricity by the petitioner. It is open for the petitioner to approach the respondent no.3 under Clause 6.5 of the U.P. Electricity Supply Code, 2005 or to file a complaint before the Consumer Grievance Redressal Forum in accordance with Clause 7.10 of the Code, 2005.

It is noted that in case the petitioner approaches the Consumer Grievance Redressal Forum, it has a power to issue interim orders under Clause 6.10 of the Consumer Grievance Redressal Forum & Electricity Ombudsman Regulations, 2007.

In view of the fact that the petitioner has an efficacious alternative statutory remedy under the Electricity Supply Code, 2005, this writ petition cannot be entertained.

The writ petition is, accordingly, ***dismissed***.

Order Date :- 15.3.2021

P Kesari